

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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PEDRO CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JOSE
REYNA, Tax No. 942422, DETECTIVE NELSON NIN,
Tax No. 950955, and POLICE OFFICERS JOHN DOES
#1-10 (names and number of whom are unknown at
present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates BRONX
County as the place of trial.

To the above named Defendants:

You are himeby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, whime service is made by delivery upon you personally within the state, or, within 30 days after completion of service whime service is made in any othim manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 4, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JOSE REYNA, Tax No. 942422, Narcotics Borough Bronx, 1 Police Plaza,
Room 1100, New York, NY
DETECTIVE NELSON NIN, Tax No. 950955, Narcotics Borough Bronx, 1 Police Plaza,
Room 1100, New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

PEDRO CRUZ,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, DETECTIVE JOSE
REYNA, Tax No. 942422, DETECTIVE NELSON NIN,
Tax No. 950955, and POLICE OFFICERS JOHN DOES
#1-10 (names and number of whom are unknown at
present),**JURY TRIAL DEMANDED**

Defendants.

----- X

Plaintiff PEDRO CRUZ, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 15, 2018, at approximately 6:00 a.m., plaintiff Pedro Cruz was lawfully present inside of his apartment located at 235 Brook Avenue, Apt. 5A, Bronx, New York, when the defendant police officers unlawfully entered the apartment without probable cause or any legal justification. The defendant officers unlawfully searched plaintiff's person and the entire apartment. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or any legal justification to accuse plaintiff of committing a crime or violating the law in any manner. The defendant police officers willfully and maliciously assaulted and battered plaintiff and subjected him to excessive force by hitting him in the head with a Ballistic Shield. Thereafter, the defendants denied plaintiff the right to medical treatment for approximately 1.5 hours while he was bleeding from his head. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, assaulted, battered, and subjected plaintiff to excessive force in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff PEDRO CRUZ is and was at all times relevant herein a resident of the State of New York.

3. DETECTIVE JOSE REYNA, Tax No. 942422, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE JOSE REYNA, Tax No. 942422, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

5. DETECTIVE JOSE REYNA, Tax No. 942422, is being sued in his individual and official capacity.

6. DETECTIVE NELSON NIN, Tax No. 950955, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE NELSON NIN, Tax No. 950955, is and was at all times relevant herein, assigned to Narcotics Borough Brooklyn North.

8. DETECTIVE NELSON NIN, Tax No. 950955, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant herein, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police

force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

15. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about October 19, 2018.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On August 15, 2018, at approximately 6:00 a.m., plaintiff was lawfully present inside of his apartment located at 235 Brook Avenue, Apt. 5A, Bronx, New York.

20. On August 15, 2018, at approximately 6:00 a.m., the defendant police officers unlawfully entered 235 Brook Avenue, Apt. 5A, Bronx, New York, and without provocation or legal justification, the defendant police officers assaulted and battered plaintiff in his head with a Ballistic Shield causing him to suffer serious physical injuries.

21. Upon being hit in the head by the defendant police officers, plaintiff sustained a laceration to his head and his head immediately started bleeding.

22. The defendant police officers then unlawfully handcuffed plaintiff while he was bleeding from his head without reasonable suspicion, probable cause or any legal justification.

23. After unlawfully handcuffing plaintiff, the defendant police officers unlawfully searched the entire apartment causing significant property damage.

24. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

25. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe he committed a crime or violated the law.

26. Notably, plaintiff was never charged with a crime by the defendant police officers or the District Attorney's Office related to this incident.

27. The defendant officers denied plaintiff the right to medical treatment for approximately 1.5 hours while they unlawfully searched the apartment.

28. Finally, on August 15, 2018, at approximately 7:30 a.m., EMS was called to the apartment and plaintiff finally received medical treatment for the laceration to his head caused by the defendant police officers hitting him in the head with a Ballistic Shield.

29. Plaintiff's handcuffs were finally removed and EMS transported him to Lincoln Hospital to receive further medical treatment for the injuries caused by the defendant police officers.

30. Upon arrival at Lincoln Hospital, plaintiff was treated by the medical providers for a laceration to his forehead.

31. Plaintiff was diagnosed with a laceration to his forehead, which required 4 sutures to close.

32. As a result of the laceration to his plaintiff's forehead caused by the defendant police officers, plaintiff sustained permanent scarring on his forehead from the laceration.

33. As a result of the unlawful entry and search in plaintiff's apartment, he sustained property damage in the amount of approximately \$2,000.

34. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, denial of medical treatment, assault, battery, and use of excessive force against plaintiff.

35. The unlawful search, false arrest/imprisonment, unlawful search, denial of medical treatment, assault, battery, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of him right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herien.

44. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

45. Defendants lacked probable cause to search plaintiff.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Pedro Cruz. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

50. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION**Assault**

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

55. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Battery

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The use of excessive force by defendants by, amongst othim things, hitting plaintiff in the head with a Ballistic Shield constituted an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION**Deliberate Indifference to Medical Needs- Violation of the Fourteenth Amendment**

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. Defendants, despite being aware that plaintiff was seriously injured delayed plaintiff's medical treatment and refused to administer, and properly procure, immediate and adequate medical attention.

71. The delay in medical treatment to plaintiff's injuries resulted in further damage to plaintiff's laceration to his head that would have been prevented if plaintiff was treated in a timely manner.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the Fourteenth Amendment to the United States Constitution.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, the New York City Department of Correction which are thimefore responsible for their conduct.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION**Negligence**

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. Defendants owed a duty of care to plaintiff.

77. To the extent defendants claim that the injuries to plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by hitting plaintiff in the head with a Ballistic Shield.

78. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

79. All of the foregoing occurred without any fault or provocation by plaintiff.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Failure to Intervene

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

88. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHIMEFORE, plaintiff Pedro Cruz demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 4, 2019

By: /s/
STUART E. JACOBS
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JOSE REYNA, Tax No. 942422, Narcotics Borough Bronx, 1 Police Plaza,
Room 1100, New York, NY
DETECTIVE NELSON NIN, Tax No. 950955, Narcotics Borough Bronx, 1 Police Plaza,
Room 1100, New York, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 November 4, 2019

/s/
STUART E. JACOBS